

Law & Motion

1. 9:00 AM CASE NUMBER: L22-03223
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. CHETT SALZMAN
*HEARING ON MOTION IN RE: MOTION TO ENTER JUDGMENT FILED BY PLN ON 9/12/2025
FILED BY:
TENTATIVE RULING:

Plaintiff American Express National Bank ("Plaintiff") filed a Motion to Enter Judgment on September 12, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

The Court previously continued the matter to December 30, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice of the hearing has properly been given to the Defendant. While it appeared that the moving papers were served on Defendant, it was not apparent based on the filed proof of service whether the as-served moving papers gave notice of the assigned hearing date. **Plaintiff was ordered to give notice of the new hearing date to Defendant. See Order entered November 26, 2025.**

No filing appears of record reflecting that Plaintiff gave notice of the continued hearing date as ordered.

Background

The parties entered into that certain settlement agreement filed on July 11, 2023 (the "Settlement Agreement"), the terms of which included a stipulation for entry of judgment in the amount of \$7,869.86 plus costs, less any credits, in the event of a default by the defendant Chett Salzman ("Defendant") in the payment of a reduced amount of \$5,945.00, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed September 12, 2025 ("Supporting Declaration"), ¶¶5-6 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit A**, ¶¶2, 9 and 10.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. Defendant failed to cure after notice. *Id.* at ¶8 and **Exhibit B** thereto.

After credit for amounts paid, there remains \$2,167.35 due and owing, plus costs of \$367.90. See Supporting Declaration, ¶¶6-7; see Memorandum of Costs filed September 12, 2025.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion. **However, THE**

PARTIES ARE ORDERED TO APPEAR to confirm whether Plaintiff gave Defendant notice of the hearing date as ordered.

2. The Court finds that Defendant is in default of the Settlement Agreement.
3. Subject to Paragraph 1 above, the Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$2,167.35, plus costs of \$367.90, for a total judgment of \$2,535.25.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L23-00312
CASE NAME: BANK OF AMERICA N.A. VS. PARDEEP SINGH
***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT**
FILED BY:
TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion to Vacate Dismissal and Enter Judgment under Terms of Stipulated Settlement on August 7, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on October 28, 2025.

The Court previously continued the matter to December 2, 2025, 9:00 a.m. in Department 34 of the Court to ensure that notice of the hearing has properly been given to the Defendant. Plaintiff was ordered to give notice of this continued hearing date on the pending motion. See Order entered November 10, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. An Amended Notice of Motion now appears on the Court's docket with a filing date of October 3, 2025, with notice of the prior October 28, 2025 date. However, no further Amended Notice of Motion appears with notice of the current December 2, 2025 hearing date.

Counsel for Plaintiff appeared at the December 2nd hearing and acknowledged that no further notice had given of the new December 2nd hearing date and requested a further opportunity to give timely notice and have this matter heard. **The Court continued the matter again to December 30, 2025, 9:00 a.m. in Department 34. Plaintiff was ordered to give notice of the new hearing date to Defendant forthwith.** See Minute Order dated December 2, 2025.

No further filings of record on the Court's docket indicate that any such notice was given by Plaintiff to Defendant. No amended notice of motion appears on the Court's docket.

Background

The parties entered into that certain settlement agreement filed on April 21, 2023 (the